

		<i>4. Monetary sanctions are mandatory and the requested amount is reasonable.</i> Section 1281.99, subdivision (a), requires the Court to order a drafting party that materially breaches under section 1281.97 to pay the reasonable expenses, including attorney fees and costs, incurred by the consumer as a result of the breach. Plaintiffs request \$5,910, consisting of 2.0 hours reviewing JAMS correspondence and following up regarding payment, 3.0 hours researching available remedies, 2.0 hours drafting the election and motion, 2.0 hours for the hearing, all at \$650 per hour, plus \$60 in filing fees and costs. (Vance Decl., ¶ 8.) The hourly rate and time claimed are reasonable for this motion and were caused by Rover’s material breach. Rover does not offer a developed challenge to the amount. The Court therefore awards the requested \$5,910. The award is compensatory and mandatory under section 1281.99, subdivision (a); the Court does not impose discretionary evidentiary, terminating, or contempt sanctions under subdivision (b). <u>Disposition</u> 1. Plaintiffs’ motion to withdraw from arbitration and lift the stay is granted. 2. The stay of this action is lifted. 3. Monetary sanctions of \$5,910 are imposed against defendant A Place for Rover, Inc., payable to Plaintiffs through counsel within 30 days after service of notice of this ruling. 4. Rover shall give notice.
9.	2024-1424606 Vega vs. Bearley	Case Management Conference The demurrer of plaintiffs Philip Vega, Kevin Vega, and Contractors and Developers Bonding & Insurance Services Inc. to defendant Great American Insurance Company’s answer is sustained in part and overruled in part. The demurrer is sustained with 15 days leave to amend as to the ninth cause of action; it is otherwise overruled.

		Previously, Plaintiffs demurred to the answer filed by Defendant Matthew Caldwell. The parties agree that not only are the Caldwell and Great American answers the same [ROA ## 361, 299] but so are the demurrers to each of them. [ROA ## 370, 309.] [See Opp. (ROA #447) at 3:14-18.] Given this, Plaintiffs have stated that they stipulate to the ruling on their demurrer to Great American's answer being the same as the 6/24/26 ruling [ROA # 421] on Plaintiffs' demurrer to Defendant Caldwell's answer. [See Reply (ROA #453) at 1:2-10.] Accordingly, for the reasons stated in the court's 6/24/26 minute order, the demurrer to Defendant Great American's answer is sustained with leave to amend as to the ninth affirmative defense and overruled as to the remaining.
11.	2025-1516494 Kimberly Arms, LLC vs. James D. White, as Trustee of the Henry A. Fredricks Separate Property Trust dated October 12, 1988	Case Management Conference The Court denies Plaintiff Kimberly Arms, LLC's Motion to strike portions of Defendant James R. White's (as Co-Trustee) Answer. <u>Legal Standard</u> Pursuant to Code of Civil Procedure section 436, the court may: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).) "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.) <u>Merits</u> Plaintiff brings a singular claim for partition in her Complaint. In response to Defendant's Answer, Plaintiff now seeks to strike the first affirmative defense for unclean hands and facts alleged in the Answer. Specifically, Plaintiff seeks to strike the following from the Answer: 1. Paragraphs 1-9, Page 9, lines 9-27, and page 10, lines 1-15 of the Answer's First Affirmative Defense (Unclean Hands). 2. Paragraph 1, Page 3, Lines 8-12: "...and expands upon Plaintiff's summary as follows: The Complaint appears to be part of a scheme